

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State, Bar number, and address): Kristy Gabrielova (274827), H Julia Jung (316090), Michael Kahn (236898), Robert K Hanna (341970), Junqiao Xiao (341670) Midland Funding LLC 350 Camino de la Reina Suite 100 San Diego, CA 92108 TELEPHONE NO.: 866-300-8750 FAX NO. (Optional): E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name): Midland Credit Management Inc.	FOR COURT USE ONLY Electronically FILED by Superior Court of California, County of Los Angeles 1/22/2024 10:52 AM David W. Slayton, Executive Officer/Clerk of Court, By T. Salgado, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 Penfield Avenue, Room 1200 MAILING ADDRESS: 9425 Penfield Avenue, Room 1200 CITY AND ZIP CODE: Chatsworth 91311 BRANCH NAME: North Valley District, Chatsworth Courthouse	
PLAINTIFF/PETITIONER: Midland Credit Management Inc.	CASE NUMBER: 24CHLC00819
DEFENDANT/RESPONDENT: THOMAS TERNUS	
PROOF OF SERVICE OF SUMMONS	Ref. No. or File No.: 23-200184

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of (specify documents):
Summons; Complaint; Civil Case Cover Sheet; Civil Case Cover Sheet Addendum and Statement of Location; Notice of Case Assignment; Order to Show Cause Hearing/Trial Date; Declaration Reduction in Filing Fee; Alternative Dispute Resolution (ADR); General Order; First Amended General Order
3. a. Party served (specify name of party as shown on documents served):
THOMAS TERNUS
- b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b whom substituted service was made) (specify name and relationship to the party named in item 3a):
4. Address where the party was served:
2811 CHANTEL LN, PALMDALE, CA 93551-1597
5. I served the party (check proper box)
 - a. ☐ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): at (time):
 - b. ☒ **by substituted service.** On (date): **01/19/2024** at (time): **6:54 PM** I left the documents listed in item 2 with or in the presence of (name and title or relationship to person indicated in item 3):
Jane Doe, I delivered the documents to an individual who refused to give their name who identified themselves as the co-resident. The individual accepted service with direct delivery. The individual appeared to be a black-haired Asian female contact 25-35 years of age, 5'-5'4" tall and weighing 80-120 lbs with glasses.
 - (1) ☐ **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
 - (2) ☒ **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
 - (3) ☐ **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
 - (4) ☒ I thereafter caused to be mailed (by first class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc § 415.20). Documents were mailed on (date): from (city): or ☒ a declaration of mailing is attached.

BY FAX



PLAINTIFF/PETITIONER: Midland Credit Management Inc.	CASE NUMBER:
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(5) ☒ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

- c. ☐ **by mail and acknowledgement of receipt of service.** I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,
- (1) on *(date)*: (2) from *(city)*:
- (3) ☐ with two copies of the *Notice and Acknowledgement of Receipt* and a postage-paid return envelope addressed to me. *(Attach completed Notice and Acknowledgement of Receipt.)* (Code Civ. Proc., § 415.30)
- (4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40)
- d. ☐ **by other means** *(specify means of service and authorizing code section):*

☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:

- a. ☒ as an individual defendant.
- b. ☐ as the person sued under the fictitious name of *(specify)*:
- c. ☐ as occupant.
- d. ☐ On behalf of *(specify)*

under the following Code of Civil Procedure section:

- | | |
|---|---|
| ☐ 416.10 (corporation) | ☐ 415.95 (business organization, form unknown) |
| ☐ 416.20 (defunct corporation) | ☐ 416.60 (minor) |
| ☐ 416.30 (joint stock company/association) | ☐ 416.70 (ward or conservatee) |
| ☐ 416.40 (association or partnership) | ☐ 416.90 (authorized person) |
| ☐ 416.50 (public entity) | ☐ 415.46 (occupant) |
| | ☐ other: |

7. Person who served papers

- a. Name: **Ramon Myers**
- b. Address: **9175 E Ave S4, Littlerock, CA 93543**
- c. Telephone number: **661-458-9926**
- d. The fee for service was: **\$ 67.60**
- e. I am:

- (1) ☐ not a registered California process server.
- (2) ☐ exempt from registration under Business and Professions Code section 22350(b).

(3) ☒ registered California process server:

- (i) ☐ owner ☐ employee ☒ independent contractor. For: **ABC Legal Services, LLC**
- (ii) ☒ Registration No.: **2019216823** Registration #: **6779**
- (iii) ☒ County: **County of Los Angeles** County: **Los Angeles**

BY FAX



8. ☒ I **declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
or
9. ☐ I **am a California sheriff or marshal and I certify** that the foregoing is true and correct.

Date: 01/19/2024

Ramon Myers

(NAME OF PERSON WHO SERVED PAPERS/SHERIFF OR MARSHAL)



(SIGNATURE)



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SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 Penfield Avenue, Room 1200 MAILING ADDRESS: 9425 Penfield Avenue, Room 1200 CITY AND ZIP CODE: Chatsworth 91311 BRANCH NAME: North Valley District, Chatsworth Courthouse	
PLAINTIFF/PETITIONER: Midland Credit Management Inc.	CASE NUMBER:
DEFENDANT/RESPONDENT: THOMAS TERNUS	24CHLC00819
DECLARATION OF REASONABLE DILIGENCE	Ref. No. or File No.: 23-200184

Party to Serve:
THOMAS TERNUS

Documents:

Summons; Complaint; Civil Case Cover Sheet; Civil Case Cover Sheet Addendum and Statement of Location; Notice of Case Assignment; Order to Show Cause Hearing/Trial Date; Declaration Reduction in Filing Fee; Alternative Dispute Resolution (ADR); General Order; First Amended General Order

BY FAX

Service Address:

2811 CHANTEL LN, PALMDALE, CA 93551-1597

I declare the following attempts were made to effect service by personal delivery:

1/16/2024 4:36 PM: I spoke with an individual who identified themselves as the resident and they stated subject resides but not available at this time.

1/18/2024 3:38 PM: There was no answer at the address.

1/19/2024 6:53 PM: I spoke with an individual who identified themselves as the resident and they stated subject resides but not available at this time.

Person who performed diligence:

Ramon Myers

9175 E Ave S4, Littlerock, CA 93543

661-458-9926

I am a registered California process server

Registration No.: 2019216823

County: County of Los Angeles

I declare under penalty of perjury under the laws of the State of California the foregoing is true and correct.

Date: 01/19/2024

Ramon Myers

(NAME OF PERSON WHO PERFORMED DILIGENCE)


(SIGNATURE)



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PLAINTIFF/PETITIONER: Midland Credit Management Inc.	CASE NUMBER: 24CHLC00819
DEFENDANT/RESPONDENT: THOMAS TERNUS	
DECLARATION OF MAILING	Ref. No. or File No.: 23-200184

The undersigned hereby declares: that I am over 18 years of age and not a party to this action. I am a resident of or employed in the county where the mailing took place.

My business address is 316 W 2nd St. 3rd Floor, Los Angeles, CA 90012.

That on **January 22, 2024**, after substituted service was made, I mailed the following documents: **Summons; Complaint; Civil Case Cover Sheet; Civil Case Cover Sheet Addendum and Statement of Location; Notice of Case Assignment; Order to Show Cause Hearing/Trial Date; Declaration Reduction in Filing Fee; Alternative Dispute Resolution (ADR); General Order; First Amended General Order** to the servee in this action by placing a true copy thereof enclosed in a sealed envelope with postage prepaid for first class mail and placing the envelope for collection and mailing following our ordinary business practices. I am readily familiar with this business's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service in **Los Angeles, CA**.

That I addressed the envelope as follows:

THOMAS TERNUS
2811 CHANTEL LN
PALMDALE, CA 93551-1597

BY FAX

That I declare under penalty of perjury under the laws of the State of California the foregoing is true and correct.

That I executed this declaration on 1/22/2024 at Los Angeles, CA.

/s/ Jesus Alvarez

Declarant: **Jesus Alvarez**, Reg. # 6585

Tracking #: **0122646026**



REF: **23-200184**

